

Ram Lal v. Southern Electricity Distribution Corp. Ltd.

High Court of Judicature at Allahabad · Division Bench · 13 September 2017 · Writ-C No. 39577 of 2017 · **Writ disposed; petitioner left to clause 6.14 instalment request.**

HEADNOTE

A writ seeking leave to pay a May 2017 Dakshinanchal bill in instalments was disposed of after the licensee pointed to the statutory request under clause 6.14 of the U.P. Electricity Supply Code, 2005. The Court did not itself grant or refuse instalments.

FACTUAL SUMMARY

Ram Lal filed a writ against Dakshinanchal Vidyut Vitaran Nigam Limited (styled Southern Electricity Distribution Corp. Ltd.) seeking leave to pay a bill dated 7 May 2017 in instalments. On 31 August 2017 the Court gave the licensee ten days to take instructions. On 11 September 2017, respondent's counsel having not appeared after the list was revised, the petition was again listed as fresh. The only submission at the 13 September 2017 hearing was the instalment request.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment-payment-clause-6.14

HOLDING

Where the only relief sought in a writ is permission to deposit an electricity bill in instalments, the consumer is to avail the statutory request under clause 6.14 of the Electricity Supply Code, 2005; the petition is disposed of leaving that remedy open. ¶ 3

PRINCIPLE TAGS

installment-payment-clause-6.14 A writ seeking leave to pay a May 2017 Dakshinanchal bill in instalments was disposed of after the licensee pointed to the statutory request under clause 6.14 of the U.P. Electricity Supply Code, 2005. The Court did not itself grant or refuse instalments. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO PAY THE 7 MAY 2017 BILL IN INSTALMENTS
The Court neither granted nor refused instalments; it left the petitioner to apply under clause 6.14. ¶ 3